

25SMCV05190 25SMCV05190

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-07-20

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Case Number: 25SMCV05190 Hearing Date: July 20, 2026 Dept: 205

Superior

Court of California

County

of Los Angeles – West District

Beverly Hills Courthouse / Department 205

BANKERS HEALTHCARE GROUP, LLC,

Plaintiff,

v.

MENANDRO R.

GONZALEZ,

Defendant.

Case No.:

25SMCV05190

Hearing Date: July 20, 2026

[TENTATIVE]

order RE:

Plaintiff's motion to set aside dismissal

and enforce settlement

BACKGROUND

Plaintiff

Bankers Healthcare Group, LLC ("Plaintiff") alleges that Defendant Menandro R. Gonzalez ("Defendant") breached a promissory note by failing to make the required scheduled payments pursuant to the Note. (Compl., ¶ 6.)

On October 1, 2025, Plaintiff filed a Complaint alleging a cause of action for Breach of Promissory Note.

On January 21, 2026, the Court ordered dismissal of the instant matter pursuant to the settlement agreement and stipulation to allow the Court to retain jurisdiction.

On June 18, 2026, Plaintiff filed this Motion to Set Aside Dismissal and Enforce Settlement ("Motion").

No opposition has been filed.

LEGAL STANDARD

"If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." Code Civ. Proc., § 664.6, subd. (a). The court need not vacate the dismissal if the parties requested retention of jurisdiction before the dismissal. (*Madrigal v. Hyundai Motor America* (2025) 17 Cal.5th 592, 719, fn. 3; *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182.)

DISCUSSION

Plaintiff

requests the Court enter a judgment for Plaintiff against Defendant for the sum of \$58,785.42 (\$57,725.42 principal plus \$1,000 attorney fees and \$60.00 motion filing fee).

A.

Jurisdiction

“[V]oluntary dismissal

of an action or special proceeding terminates the court’s jurisdiction over the matter.” (Mesa RHF Partners, L.P. v. City of Los

Angeles (2019) 33 Cal.App.5th 913, 917 [quoting In re

Conservatorship of Martha P. (2004) 117 Cal.App.4th 857, 967)

(alteration in original).) “If requested by the parties,’

however, ‘the [trial] court may retain jurisdiction over the parties

to enforce [a] settlement until performance in full of the terms of the

settlement.” (Id. (quoting CCP section 664.6)

(emphasis in original).) “Because of its summary nature, strict compliance

with the requirements of section 664.6 is prerequisite to invoking the power of

the court to impose a settlement agreement.” (Id. (quoting Sully-Miller

Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103

Cal.App.4th 30, 37).)

“A

request for the trial court to retain jurisdiction under section 664.6 ‘must

conform to the same three requirements which the Legislature and the courts

have deemed necessary for section 664.6 enforcement of the settlement itself:

the request must be made (1) during the pendency of the case, not after the

case has been dismissed in its entirety, (2) by the parties themselves, and (3)

either in a writing signed by the parties or orally before the court.” (Id. (quoting Wackeen v.

Malis (2002) 97 Cal.App.4th 429, 440).) “The ‘request must be

express, not implied from other language, and it must be clear and unambiguous.”

(Id. (quoting Wackeen, supra, 97 Cal.App.4th at

440).)

Here,

the parties requested retention of jurisdiction before dismissal. On December

24, 2025, the parties stipulated for the Court to retain jurisdiction to

enforce the settlement pursuant to Civil Procedure section 664.6. (Id.

at ¶ 3, Ex. B.) The Court ordered the case dismissed on January 21, 2026. (Ibid.) The stipulation was signed by the parties. (Ibid.) Because the stipulation complies with section 664.6, the Court retained jurisdiction to enter judgment pursuant to the parties' stipulation.

B.

Entry of Judgment

Here,
the Court finds the Settlement agreement to be valid and enforceable under Code of Civil Procedure section 664.6. The Settlement Agreement was signed by Plaintiff and Defendant on November 29, 2025. (Friedman Decl., ¶ 2, Ex. A.) The Settlement Agreement requires Defendant to pay the sum of \$60,183.83 to Plaintiff first in 12 month payments in the amount of \$819.47 each and then in 31 monthly payments in the amount of \$1,6638.93 each. (Ibid.) The Settlement Agreement also states that Defendant is liable for interest, attorneys fees and costs. (Ibid.) Defendant made a few sporadic payments totaling \$2,458.41. (Id. at ¶¶ 4, 5.) Defendant never made any required payments thereafter, despite Plaintiff providing courtesy notice of this motion and hearing. (Ibid.)

Accordingly,
Plaintiff's unopposed Motion is granted and judgment is entered pursuant to the terms of the Settlement Agreement in the amount of \$58,785.42 (\$57,725.42 principal plus \$1,000 attorney fees and \$60.00 motion filing fee).

CONCLUSION

For the foregoing reasons, the Court GRANTS Plaintiff's Motion to Set Aside Dismissal and Enforce Settlement. Judgement is entered in the amount of \$58,785.42.

DATED: July 20, 2026 _____

Edward
B. Moreton, Jr.

Judge
of the Superior Court